



ONTARIO LABOUR RELATIONS BOARD

OLRB Case No: **3323-15-R**

Jason Konarski, Applicant v Labourers' International Union of North America, and Labourers' International Union of North America Provincial District Council, Responding Parties v 2385575 Ontario Inc. o/a **Extreme Concrete**, Intervenor

BEFORE: John D. Lewis, Vice-Chair

APPEARANCES: Jason Konarski appearing for the applicant; Kamal Bakhazi, Branden Lewis and Padraigin Murphy appearing for the responding party; Evan Campbell and Ryan Haid appearing for the intervenor

DECISION OF THE BOARD: April 19, 2017

1. This is an application for the termination of bargaining rights pursuant to section 132 filed under the construction industry provisions of the *Labour Relations Act, 1995*, S.O. 1995, c.1, as amended (the "Act"). It was filed by the applicant Jason Konarski ("Konarski") on March 18, 2016. A representation vote took place on March 31, 2016. Three individuals cast ballots and the responding parties (the "Labourers") challenged all three individuals and the ballot box was sealed.

2. In its Case Review decision, dated May 3, 2016, the Board (differently constituted), identified the background facts as follows:

12. The applicant in his application (as explained by his letter of March 29, 2016 that was appended to the Board's decision) seeks to terminate the Labourers' bargaining rights in both the industrial, commercial and institutional sector in the Province of Ontario and in all other sectors in Board Area 18.

13. The applicant identified one job site where he claims he and the other employees were working on March 18, 2016, the date this application was filed—the school at 105 Colborne Street in Bradford. The applicant stated they were working on the “exterior sidewalks”.

14. The intervenor asserted there were three employees at work at the job site at 105 Colborne Street.

15. The Labourers in their response claimed there was no work being carried out at that job site on the application date and there were therefore no employees in “the bargaining unit” on the application date.

16. Neither the applicant nor the intervenor have addressed whether the work they say the employees were doing at the school at 105 Colborne Street in Bradford was in the industrial, commercial and institutional sector of the construction industry or in some other sector of the construction industry. The Labourers in their initial submissions maintained no work was taking place on the application date.

17. The applicant and the intervenor filed detailed factual submissions and documents which on their face support their assertion that the employees were working at the job site on Colborne Street on the application date. The applicant asserted that he and the other two bargaining unit employees car pooled to the job site together on March 18th. The time sheets, pay stubs and invoices filed by the intervenor that relate to the work done by its employees are also consistent with work being done on the application date.

18. The Labourers in their subsequent submissions dated April 25, 2016 in response to the applicant’s and intervenor’s submissions conceded that bargaining unit work was being done on the application date. They also withdrew their allegation that the applicant was not a bargaining unit employee.

3. In its Case Review decision the Board was not able to determine two discrete issues. The first issue was whether the application related to an industrial, commercial and institutional (“ICI”) sector bargaining unit or to a bargaining unit applicable to all other sectors in Board Area 18. That determination was dependent on whether the exterior sidewalk work at the job site was work in the ICI

sector covered by the Labourers Provincial ICI Agreement and/or one of its Appendices (i.e. Cement Finishing) or was it work in some other sector of the construction industry falling within, for example, the scope of the Roads Agreement.

4. The second discrete issue related to the allegations made by the Labourers under section 63(16) of the Act. The Labourers claimed the employer/intervenor had met with employees and discussed applying for decertification. The Labourers allege that the owner, Ryan Haid ("Haid") and the applicant are good friends. Further, it alleges Haid provided needed information for the application to the applicant, such as, the proper name of the union, the contact information for the general contractor and the e-mail address for Elio Toppan, Local 506's Organizing Co-ordinator. The Labourers also allege that Haid encouraged the applicant to withdraw a prior termination application and re-file it due to a defect in the first application. As a result, the Labourers assert the current application should be dismissed pursuant to section 63(16) of the Act. In its prior Case Review decision the Board dismissed the Labourers' *April Waterproofing* allegations and directed the Labourers proceed first with the calling of its section 63(16) evidence.

5. The Board held two-days of hearing into this matter and three persons were called as witnesses. In addition to their testimony the Board has before it eight exhibits which were entered during the course of the proceedings. In making the findings and reaching the conclusions set forth in this decision, the Board has duly considered all of the oral and documentary evidence, the submissions of counsel and the usual factors germane to assessing evidentiary credibility and reliability, including the firmness and clarity of the witnesses' perspective memories, their ability to resist the influence of self-interest when giving their version of events, the internal and external consistency of their evidence and their demeanour while testifying. The Board has also assessed what is most probable in the circumstances of the case and considered the inferences which may reasonably be drawn from the totality of the evidence.

The Evidence of the Witnesses

i) Jason Konarski

6. The Labourers called the applicant as a witness. In examination-in-chief Konarski testified that he had discussed the

bringing of a termination application with two other employees, namely, Fred Lahey and Justin Konarski. He denied that he ever discussed the termination application with the owner, Haid, except when he initially served him and when he withdrew the first application.

7. Konarski testified that he withdrew his first application based on advice he had received from the Labour Board that he had served parties out of order. So he withdrew it and then re-filed it making sure he "crossed the t's and dotted the i's".

8. Konarski also recalled he had a discussion with Haid soon after the Labourers had been certified in February of 2015. The discussions concerned new hours; how the hourly rate would be changing; and a basic introduction of the union into the company. Konarski testified that there was no real negative reaction from Haid towards the union after it was certified. Rather, Konarski recalls Haid commenting "that's life and one must carry on" or "it is what it is" or words to that effect.

9. Konarski confirmed he is an employee of Extreme Concrete and that he is a member of the union in good standing. He acknowledged that he did, at one point in time, let his dues lapse in the winter when it was slow but at the time of the application he had been re-installed and was up to date as an active member. Konarski testified that he did not discuss his visit to the union office to pay up his dues with Haid. Konarski stated that Haid would not know if his dues had lapsed as it was Konarski's responsibility and not the employer's responsibility to pay dues.

10. Konarski testified that work had been slow after the summer of 2015. Initially, after the union was certified, work was still busy as the company was allowed to finish work it had "on the books", however, when that ran out not a lot of new work was coming in. Konarski testified he had gone from working every day to working 1 - 2 days a week. Konarski acknowledged he believed there was a connection between the change in work and the union.

11. Union counsel showed Konarski some statements that the other employees, Fred Lahey and Justin Konarski, had written which stated work had dwindled since the union got in. Konarski confirmed he had discussed the reduced work with his co-workers and that they had collectively formed the view that the union was a contributing factor to the slow down. Konarski, however, denied that he had ever

discussed the slow down in work with Haid or Haid's customers. He stated he never made a comment to Haid about the drop off in work but would only ask Haid as to what work was coming up.

12. Konarski testified that he named LIUNA and LIUNA, OPDC in the application as that is the name on the "black book" (i.e. the collective agreement) the union gave him and the others at an orientation meeting after the union was certified. Likewise, Konarski explained he had identified and served Elio Topan, as it was his understanding from that orientation that Topan was the senior union official. Konarski denied that he and Haid were personal friends.

13. The intervenor did not have any questions for Konarski and the Labourers called no further witnesses.

ii) The Evidence of Ryan Haid

14. The intervenor called Ryan Haid, the owner and President of Extreme Concrete as a witness. Haid testified that he has been in the concrete business for approximately 20 years and has been on his own for 12 - 13 years. He testified that Extreme Concrete's business is mostly schools, plazas and other commercial work. The company does concrete floors, cross slabs, sidewalks, however, it has not done residential work for at least the past 6 - 8 years.

15. Haid testified that on March 18, 2016, the application date, he had assigned the three employees to go up to the school project in Bradford. He identified the original purchase order for the job and indicated Extreme Concrete had been subcontracted by the general contractor (Percon) to cut up some concrete floor inside the school in order that new plumbing and HVAC could be installed and then re-pour the concrete. In addition, Extreme Concrete was to pour cross slabs for sidewalks that were outside and which abutted the school. In general, the project was a renovation to and a new addition to an existing school.

16. Haid testified that Percon had contacted him and had asked if Extreme Concrete was interested in doing some sidewalk work that had to be performed over the March break when no students were present. Supposedly, the sidewalks needed to be fixed due to damage that had occurred. Haid identified both the Estimate he provided to Percon as well as the Change Order given to Extreme Concrete by

Percon. Haid indicated the Change Order was in the nature of an "add on" to Extreme Concrete's contract with Percon.

17. The Board notes the description of the work in Extreme Concrete's Estimate states the following:

To install concrete sidewalk as per spec and as requested, project to be done over school march break as there wont be children present, price includes but not limited to pouring and screeding of sidewalk, installing edged control joints, installing rounded edgeing around perimeter and installing broom finish as per specified.

18. The Board also notes that the Percon Change Order reads as follows:

Percon Change Order No.: 121-041

The following shall serve as your authorization to proceed with the supply and installation of the work issued by Robertson Simmons Architects Inc., for the above noted Project, as per:

Proposed Change No.: Complete Municipal Sidewalks as per Estimate #23 dated March 11, 2016.

NOTE – ISSUE SEPARATE INVOICE TO OUR ACCOUNTING DEPARTMENT REFERENCING THIS CO No.

All work must conform to the original contract and must be carried out in an organized and timely manner so as not to affect the original construction schedule. If this change does effect the original completion date please notify this office immediately.

This change will INCREASE your original contract amount of XXX HST

Massimo Perricone
Massimo Perricone

Percon Construction Inc.

19. Haid also identified the invoice he sent Percon for the work done pursuant to the Charge Order. The invoice reads as follows as it concerns the description of work:

Description

Install concrete sidewalk as per previous estimate #23 all work completed as per agreed upon as per C/O. Work completed with in 'march break period" as requested poured Friday and removed insulation blankets and your forming on Sunday

HST (ON) on sales

20. Haid testified that the work done on Friday, March 18, 2016, involved two sections of 4' x 5' sidewalks which were cracked/damaged due to delivery of millwork by a transport truck. Percon needed the sidewalks repaired before the school could be turned over. The second piece of work involved 300-320 square feet of concrete cross slabs, approximately 12 - 13' wide and 28' long, which abutted the school which had similarly been damaged. Haid identified a set of drawings for the project and indicated on the drawings where the work took place.

21. Haid testified that on March 18, 2016, he arrived at the job site at approximately 2:00 - 3:00 p.m. as the site was on his way up to his cottage. He had brought coffee "for the boys", however, no one was there and the work had already been done.

22. Haid confirmed that he did not instruct Konarski to bring the decertification nor did he meet with Konarski or any other employees to discuss the bringing of an application. Haid testified the first time he learned of a termination application was when Konarski asked if Haid was in the shop and when Haid replied "yes", Konarski indicated he was coming over. When Konarski arrived at the shop he handed Haid an envelope. Haid asked what it was and Konarski replied "You've been served". Haid recalled he went to his truck and opened the envelope and then phoned his lawyer.

23. Haid testified that a couple of hours after he got served with the envelope, which had contained a termination application, he found a note that Konarski had taped to Haid's screen door that said "I, Jason Konarski, withdraw my application re improper information from Labour Board". Haid testified that a couple of hours after he had read

the withdrawal letter he phoned Konarski. He recalls Konarski telling him "don't worry you are getting another one, whether you like it or not". Haid indicated he did not discuss the bringing of a second application with Konarski.

24. In cross-examination, Haid agreed that the small piece of work involving the municipal sidewalks was above the school property line. He confirmed that the three employees, on March 18, 2016, worked at two different spots/locations at the school. He confirmed that when he arrived on site that day, he observed an insulation blanket on the "little piece of work" (i.e. the 2 – 4' x 5' sidewalks) and then he went to the side of the school, by the chapel, and saw the insulation blankets on the bigger cross slabs of concrete which abutted the school. It was a little cool that day so insulation blankets had been used to stop the concrete from freezing. He confirmed he did not check under the blankets nor did he see any employees when he arrived.

25. Haid confirmed that Percon, the general contractor, arranged for the delivery of concrete to the school for March 18, 2016. He also confirmed that even though his employees had left by the time he arrived at the site, he knew they had been there as he had instructed them the day before to go there and had given them a start time and he had seen the insulation blankets. He agreed that Extreme Concrete's initial contract with Percon said nothing about sidewalks.

26. While in cross-examination Haid acknowledged his estimate to Percon only talked about a "sidewalk" (singular), however, the Change Order identifies municipal "sidewalks" (plural). He testified he had no control over what Percon puts in their Change Orders. He also recalled talking to Massimo Perricone of Percon, about sidewalks (plural) and "that's what his employees poured". He also agreed with counsel for the union that it had been 4 – 5 weeks since Extreme Concrete had previously worked at the school.

27. Haid confirmed his understanding that the School Board would not accept the project as having been substantially completed due to the damaged sidewalks and that is why Percon needed to get the repairs done.

28. Haid agreed with counsel's statement that after certification and by the end of August 2016 business had started to slow down. Haid agreed he experienced trouble retaining work due to price

increases which flowed from the collective agreement. Haid also testified that he did not have established relationships with the unionized general contractors. Haid, however, denied that he had discussed the slow down in business and the reasons for the slow down with his employees. Haid testified "I do not talk numbers with my guys, that's not how I work – if the phone rings the day before at 4:30 p.m. then I have work for them the next day – if not no work". Haid was adamant that no employee had asked him why there had been a drop off in business. He commented that the employee statements, which attribute the drop off to the union certification, are "their statements" – "that's what they believe, it is not because it is what I said to them".

29. Haid testified that he has no personal relationship with Konarski outside of work. He acknowledged that Konarski is a "facebook friend", however, he has never exchanged any messages or posted anything involving Konarski. He confirmed he is not otherwise socially connected to Konarski.

30. In cross-examination Haid disagreed with union counsel's proposition that when Konarski used the words "don't worry", in relation to getting served with a second termination application, it can be inferred that Konarski knew Haid did not want the union and he knew Haid wanted him to bring a decertification. Haid testified he did not know what Konarski meant when Konarski used the words "don't worry". Haid indicated it didn't matter to him if the company was union or non-union, either way he has to make it work.

31. Legal counsel for the union raised the issue that two locations had not been pleaded in the status submissions and that the union had operated on the basis that the only work alleged to have been performed that day dealt with municipal sidewalks. As such, the Board should not entertain the evidence concerning the second location (i.e. the cross slabs/sidewalks). The Board indicated the union had not asked the applicant any questions regarding the work he performed that day and that the application referred to "exterior sidewalks". The Board noted the estimate provided by Extreme Concrete to Percon referenced "sidewalk" but the Change Order talked of "sidewalks". The Board was of the view that the actual work description had not been directly addressed by the parties in their status submissions and the documents tendered into evidence, thus far, were somewhat ambiguous as to the description of the work to be performed. As a result, the Board would not strike the evidence of Haid that work had

been performed at two locations. Given the Board's ruling, legal counsel for the Labourers indicated it would require an adjournment before it finished its cross-examination that day, as it needed to consult within potential reply witnesses.

32. When Haid's cross-examination continued at the next hearing day, he agreed that when he arrived at the school site on March 18, 2016, he expected his employees to be there. He agreed he was only at the school for 15 – 20 minutes. He testified he had stopped for a site meeting with a Superintendent on another job on the way up to the school and that he may have gotten to the school at around 4:00 p.m.

33. As it concerns the work performed that day, Haid believed it would have taken 15 – 20 minutes to pour the municipal sidewalks and it would have taken 4 – 6 1/2 hours before the concrete was hard enough to cover. As it concerns the cross slab/sidewalk abutting the school they would also have taken 15 – 20 minutes to pour, then a few hours before they could be broomed and a few hours after that before they could be covered. Haid commented that his men were paid 8 hours for the work performed that day as the collective agreement indicates he has to pay them 8 hours after they have worked at least 4 hours.

34. In cross-examination, Haid revised his earlier testimony and now indicated the sidewalk/cross slab work abutting the school approximately 10 1/2' or 11' in width by 20' in length, approximately 220 square feet. Haid indicated the distance between the two locations where work was performed was approximately 100 – 120 feet and that it would take the concrete mixer truck only 1 minute to drive between locations.

35. Legal counsel put to Haid that a union organizer was going to testify that he and a colleague attended at the school the following week and walked around the school and the only freshly poured concrete work they observed was on the exterior municipal sidewalks. Haid disagreed with that proposition.

36. Legal counsel also put to Haid that the union organizer spoke to the Principal, Vice-Principal and a school custodian and none of these individuals recalled concrete being poured on school property on Friday, March 18, 2016. Once again, Haid disagreed and indicated the

school was closed and those individuals may not even have been there that day.

37. Haid confirmed that Lafarge was the concrete ready-mix supplier that provided the concrete for the work performed on March 18, 2016. In this regard, Haid identified a packing slip from Lafarge which showed a delivery of 300 M³ of concrete. In the special instructions box the following is typed "Side Walks Britannia Ave. right on Colborne St.". The document shows the ready-mix truck arrived at 8:25 a.m.; began to pour at 8:30 a.m.; that by 8:45 a.m. it was being washed; and that by 8:50 a.m. it was on its way back to the plant. The document shows that Justin Konarski signed for the delivery of the concrete.

38. In cross-examination, Haid acknowledged that he may have had a conversation with Konarski as well as with the other employees regarding union dues, however, he did so in relation to a grievance he received from the union shortly after Konarski's first attempt at filing a termination application. He believed the first application was filed around March 15, 2016. Haid, however, denies that he told Konarski to pay his dues. Rather, he confirmed with the employees that they had, in fact, paid any dues owing so that he could ascertain whether he would be able to use them for the upcoming work at the school.

39. In re-examination, Haid testified that in his experience it would take 0.9 metres cubed of concrete to do 100 square feet. He confirmed that the concrete packing slip referred to "sidewalks" and that Justin Konarski had signed the packing slip.

40. Haid also identified some photos he took on May 30, 2016 and June 13, 2016, subsequent to his first day on the witness stand. The photos were of the work he alleges was performed at the two locations at the school. He testified that a 5' x 5' section of sidewalk that was 3 1/2 - 4" thick would take less than 1/4 cubic metres of concrete. He confirmed the dimensions of the sidewalks that abutted the school at 20' 6" length and 10' 6" to 11' 2" wide.

The Evidence of Pierre Primerano

41. The Board notes that even though Konarski had already been called as a witness by the Labourers, the applicant was provided the opportunity to call any further evidence prior to the reply evidence of the Labourers. Konarski chose not to call any further evidence.

42. The Labourers called Pierre Primerano ("Primerano"), an organizer for Local 506 in reply. Primerano testified that Elio Toppan called him on Tuesday, March 22, 2016 and indicated a termination application involving Extreme Concrete had been filed and he wanted Primerano to go to the school in Bradford and investigate if any concrete work had been done. Primerano's handwritten notes from his investigation on March 22 and 23, 2016 were entered as Exhibits.

43. That Tuesday afternoon, Primerano and a colleague, Brandon Lewis went to the school to investigate. They talked with a custodian named Gord and they made an audio recording of that conversation which was tendered into evidence. Primerano testified that Gord indicated the only concrete poured on Friday, March 18, 2016 was at the municipal sidewalks and he was not sure if they were City Workers or not. Gord indicated he was inside most of the day and was not 100% sure and that they should speak to the head custodian Scott and/or the Principal.

44. Primerano testified that after the conversation with the custodian he examined the municipal sidewalks and it did look like concrete had been recently poured. The concrete on some of the sidewalks looked fresh and based on his experience he figured it had been poured within a week. He took a photo of the municipal sidewalks and the photo shows 5 consecutive sidewalk slabs each 5' x 5' in dimensions, had been recently poured.

45. After inspecting the municipal sidewalks, Primerano testified he walked around the school and didn't see anything that had been recently poured. He took a few photos of some of the concrete slabs/sidewalks at the northwest and southwest of the school to show no fresh concrete had been recently poured at those locations.

46. Primerano testified he went back to the school on the morning of Wednesday, March 23, 2016 and he spoke to the Vice-Principal and the Principal. An audio recording was made of his conversations and the recording was entered into evidence. The Vice-Principal indicated that to his knowledge he was not aware if any concrete was poured on March 18, 2016. The Vice-Principal told Primerano that Percon had turned the keys over two weeks prior and that there were terrazzo flooring guys at the school on March 18, 2016 working on deficiencies. The Vice-Principal indicated a Mr. Craig Elliott at the School Board was the person who might know more.

47. Primerano then went to talk to the Principal and again the Principal was not aware of any concrete being poured on school property on March 18, 2016. He indicated that no one mentioned to him that sidewalk work was being done. The Principal indicated Percon, the general contractor, was no longer on site and that the school had been handed over three weeks ago and that the Project Manager for the School Board, Craig Elliott, would know more of the details. The Principal indicated the school was closed to staff last Thursday and Friday so that the terrazzo floors could get finished.

48. Primerano was shown the photos taken just recently by Haid and disagreed that the photos of the concrete slabs/sidewalks, which about the school, show that fresh concrete was poured. He also testified that 3 cubic metres of concrete would not have been enough concrete to pour both locations. Further, he testified that 3 cubic metres of concrete is the minimum delivery usually delivered by a concrete mixer. Primerano also testified it would have taken more than 15 minutes to pour both locations and the concrete packing slip shows the pour was over in 15 minutes.

49. In cross-examination he agreed that his Tuesday visit to the school was in the afternoon with his colleague Tony, not Brandon as he had earlier testified, and that it was raining that day. He agreed that concrete looks different when wet but that he can still tell if concrete has been recently poured even when wet. He agreed he only took 3 pictures on the Tuesday and there were no pictures of the concrete slab sidewalk area where Haid had alleged work had been performed. He did not take any additional pictures on Wednesday.

50. The audio recordings were again played for the witness and he agreed that the custodian was not 100% sure about the concrete. He agreed the custodian was the night custodian who was working the day shift on March 18, 2016 and that the custodian did not really know much.

51. Primerano also agreed that he never followed up with Scott, the head custodian or with Craig Elliott, the Project Manager for the School Board, as had been suggested by the custodian, the Vice-Principal and the Principal.

52. In cross-examination, Primerano agreed that a big company like Percon does order a lot of concrete and if Percon wanted a supplier, like Lafarge, to bring only 1 cubic metre of concrete, Lafarge

may very well have accommodated such a request. Primerano, however, was adamant that all the concrete slabs/sidewalks on school property had been poured for a while when he visited the site on March 22, 2016.

53. In re-examination, Primerano confirmed that based on his 30 years of experience, his observations and the conversations he had with school personnel, it was his belief that no concrete had been poured on school property on March 18, 2016.

Legal Analysis and Decision

A) The Section 63(16) Allegations

i) The Position of the Parties

54. The Labourers submit that in order to demonstrate the employer initiated the present termination application it must prove Haid's conduct amounted to significant or influential employer involvement giving rise to the termination application. In other words, if the application is founded in the conduct of the employer, then it can reasonably be concluded that the employer has initiated that application (see *Bytown Electrical Services Ltd.*, 1996 CanLII 11195 (ON LRB) at paras. 109 and 110).

55. The Labourers also submit that the Board when deciding if there has been employer initiation is entitled to draw inferences about facts in the absence of direct evidence of those facts. It may very well be sufficient for the union to adduce circumstantial evidence which then leads to an inference of misconduct (see *Delta-Rae Homes*, 2007 CanLII 14238 (ON LRB) at para. 36).

56. In *Ever-Tech*, 2008 CanLII 14734 (ON LRB), at paragraph 28 of the Board stated the following:

28. The very nature of allegations concerning employer initiation means that it will only be in the rarest of cases that unions will be able to call direct evidence to establish the requisite misconduct. Accordingly, and as the Board has consistently held, a union is perfectly entitled to meet its onus through circumstantial evidence which leads to the natural inference that the alleged impugned conduct actually occurred.

57. The Labourers submit that it is not credible that Haid never discussed the union with his employees except for when the union was first certified and the initial orientation took place. It submits that Haid's denials that he never discussed the impact of unionization on his business with his employees is not believable. Likewise, Konarski's denials that he never discussed the drop off in work with Haid does not ring true. Therefore, the Board should draw the reasonable inference that, in all probability, there had been ongoing discussions between Haid and his employees about the slowdown in business, the reason for the slow down being the union and that the source of this information came from the employer.

58. The Labourers also submit that the evidence discloses that sometime in March 2016 Haid became concerned that all of his employees be paid up on their union dues. It submits that Haid had those conversations about dues in order to ensure the employee's union membership was not suspended so they would be eligible to bring a termination application. It asks the Board draw this inference based on the timing of the application in relation to the timing of the discussions on union dues and the reluctance of Konarski and Haid to be forthcoming on the union dues issue in their testimony. Haid acknowledged there had been some discussion concerning dues yet Konarski testified that Haid would not know if his dues had lapsed and that dues were his responsibility and not the responsibility of the employer.

59. The Labourers submit that Haid's conversation with Konarski, after he withdrew the first application, when Konarski said to Haid "don't worry", suggests the employer was, in fact, worried, which further suggests the employer was more involved in the bringing of the application than what Haid testified to. Haid's intense denial and his demeanour on the stand concerning this conversation should provide the Board with a sufficient basis to draw the inference that Haid was more involved in the initiation of this application than what he testified to.

60. The Labourers take the position that Haid must have had conversations with his employees concerning the slow down in business and its link to the union such that Haid's view informed and influenced the view of the employees. As a result, the application should be dismissed as the Board can infer from all of the surrounding circumstances that Haid's conduct did amount to significant or influential involvement which gave rise to the termination application.

61. Extreme Concrete submits that it is the Labourers who bear the onus of proving employer initiation. In this regard, it acknowledges that circumstantial evidence may be sufficient to establish employer initiation. In this case, however, it submits the evidence, even the circumstantial evidence, is not sufficient for the Board to draw the inferences the union requests the Board draw.

62. Extreme Concrete submits that the union's original theory of employer initiation, as set out in its status submissions, has not been borne out by the evidence. The initial allegations of employer involvement due to Haid and Konarski being friends and Haid supplying information to Konarski, such as the contact information for Elio Toppan or Percon or the proper name of the union, have not been established. The employer submits that Konarski was a credible witness who clearly explained why he had brought the termination application, how he had obtained the information contained in it and the independent steps he took to file it, including advice from the Labour Board which resulted in the first application being withdrawn.

63. The employer submits it is quite believable that an employer may not want to discuss the financial health of the business (i.e. the "numbers") with the employees. There is no direct evidence that any discussions took place between Haid and his employees concerning the business slowdown being equated to the company being unionized. There is, however, evidence that the employees did have conversations among themselves in which they collectively formed their own opinions as to the reasons for the slowdown. It submits the inference the union wants the Board to make that due to lack of work there must have been business slowdown conversations between Haid and his employees is not a reasonable inference given that there are plausible alternatives. In particular, it is entirely feasible that after working 1 - 2 days a week for a period of 7 - 8 months the employees, in discussions among themselves, might form their own opinion that being unionized was contributing to the slowdown in work.

64. The employer also submits that the "don't worry" comment, attributed to Konarski requires a huge massive leap in logic to be able to then infer Haid was "worried" and was, in fact, the facilitator of the application. What Konarski meant when he used the term "don't worry" was never subsequently confirmed or explained by Konarski. The applicant did not call any evidence of his own as he had already testified as the union's first witness. Likewise, it submits the union dues issue should not form a basis for inferring employer initiation as

the employer discussions concerning this issue arose as a result of a grievance from the union and after the first application had been filed.

65. The employer cited and relied on the following cases: *Jonathan Flor*, 2013 CarswellOnt 16132; *Kevin Jones*, 2013 CarswellOnt 5988, *Ken Pilon*, 2012 CarswellOnt 1579; and *Perry Armstrong*, 2011 CarswellOnt 6292. It submits the above cases stand for the propositions that the fact that an owner and employee may have a personal relationship does not lead to the inference that they must have discussed the application or the owner must have expressed a desire to be non-union. Likewise, the fact that an employer may know an employee plans to bring a termination application does not, in and of itself, prove the employer initiated it. Extreme Concrete submits that even though Haid may have known that Konarski intended to file a second termination application and assuming Konarski said "don't worry", there is still no evidence that Haid did anything to actively assist it and it cannot give rise to a reasonable inference that the employer initiated the application.

ii) The Decision

66. The Labourers have not persuaded me that it was Haid's conduct, on behalf of Extreme Concrete, that gave rise to this termination application. The Board finds Konarski to be a credible witness and believes the actions he took and the information he used in filling out the application came from his own efforts without assistance from Haid. The Board agrees with the submission of the employer that the union's original theory and its basis for alleging employer initiation has not been borne out by the *viva voce* and documentary evidence.

67. The Board agrees with the employer that the fact that Konarski may have listed Haid as a facebook friend, does not lead to the inference that the two of them must have discussed the bringing of the application or that Haid must have expressed to Konarski a desire to be non-union.

68. The Board also agrees with the employer that it is quite believable that Haid, in the operation of his business, did not see the need to discuss the financial health of the business (i.e. "the numbers") with his employees. It is also believable that, in the given circumstances of working 1 - 2 days a week for a period of 7 - 8 months the employees, in discussions among themselves, may have

formed their own view as to the union being a contributing factor to the slowdown in work. As a result, the Board is not prepared to find that the lack of business conversations between Haid and his employees is not credible and, therefore, infer that such conversations did, in fact, take place and that Haid's view informed and influenced the view of his employees.

69. The Board also agrees that the "don't worry" comment, attributed to Konarski in Haid's testimony, would require too large a leap in logic to conclude that Haid was, in fact, worried and then to infer from that Haid was worried because he saw all of his well laid plans of termination at risk given the withdrawal. Further, the fact that Haid may have known that Konarski had withdrawn his first application but intended to file another one is not sufficient evidence for the Board to infer that Haid did anything to actively assist the bringing of either the first or the second application.

70. The Board is of the view that any conversations that may have taken place concerning union dues do not give rise to an inference that Haid raised the issue in order to facilitate the bringing of a termination application. The evidence discloses that, in all likelihood, those conversations took place after Konarski had already brought his first application and that Haid inquired as to the status of union dues as a result of a grievance being filed by the union and to clarify matters given the upcoming sidewalk work which was scheduled to be performed during the March break.

71. The Board has not been persuaded that the circumstantial evidence in this case is sufficient for the Board to infer employer initiation. Therefore, the Board sees no basis to dismiss the application pursuant to section 63(16) of the Act. As a result, the Board must now go on to determine whether the "sidewalk(s)" work performed on March 18, 2016, at the school in Bradford (Board Area 18), was work in the ICI sector of the construction industry or work in some other sector.

B) The Work in Dispute and the Appropriate Bargaining Unit

i) The Position of the Parties

72. The Labourers assert that the bargaining rights in issue are not the ICI bargaining right but rather the bargaining rights covered by the Toronto and Area Road Builders' Collective Agreement (the

"TARBA Agreement"). The TARBA Agreement is the result of an accreditation.

73. The preamble to the TARBA Agreement states the following:

"Whereas the Association, acting on behalf of its members and the Council, acting on behalf of its member Unions, wish to make a common collective agreement, with respect to certain employees engaged in all road and parking lot construction, repairs, including interlocking stone paving of all types, paving, etc., and all work incidental thereto, and to provide for and ensure uniform interpretation and application in the administration of the collective bargaining agreement;"

74. Article 2 – the Recognition clause of the TARBA Agreement reads as follows:

2.01 The Association, on behalf of its member companies, recognizes the Council as the collective bargaining agent for all employees of the members of the Association and all employees of any other Employers on behalf of whom the Association has the authority to bargain in accordance with its Accreditation Order and otherwise, while working within Ontario Labour Relations Board Areas #8, 9, 10, 11 and 18, save and except non-working foremen, those above the rank of non-working foreman, office and clerical staff, temporary shop employees, engineering staff, security guards and those employees covered by a subsisting agreement between the Association and the International Union of Operating Engineers, Local 793.

75. The Labourers take the position that the project at issue in this case is the renovation and addition to an existing school. In contrast, it submits the work at issue is a discrete piece of work involving the pouring of concrete for sidewalks and that pouring of concrete for sidewalks is work that patently falls within the scope of the TARBA Agreement.

76. While the Labourers submit that the only pouring of concrete that took place on March 18, 2016 related to the municipal sidewalk slabs, if the Board disagrees and finds concrete work took place at both locations, the union's position remains the same. In particular, it submits a "sidewalk is a sidewalk is a sidewalk" whether it is in or

outside of school property lines and the pouring of concrete for a sidewalk in this case, is work falling under the TARBA Agreement.

77. The Labourers cite and rely upon the following authorities: *W. Rourke Ltd.*, 1983 CanLII 742 (ON LRB); *Eastern Construction Ltd.*, [2000] O.L.R.D. No. 4359 (QL) (October 20, 2000); *Steen Contractors Limited*, 1986 CanLII 1493 (ON LRB); and *C.S.B.I. Contracting Ltd.*, 2003 CanLII 42841 (ON LRB).

78. In particular, the Labourers cite and rely on paragraphs 23, 28 and 31 of the *Steen Contractors Limited* decision, *supra*, as follows:

23. Where the construction work for a particular project is closely integrated, as would be the case in the construction of a building, then all of the work of that project would fall within the same sector. Where however the work to be done is distinct, the responsibility for it is clearly severable and where such work appears to patently fall within one of the enumerated sectors of the construction industry, there is not any compelling reason to distort the concept of sector in order to find that all of the work on a project falls within the same sector.

28. The characteristics of the actual work in dispute did not differ because it was performed within private property lines. As one witness commented in his testimony, a sewer is a sewer is a sewer. That is, no matter where a storm sewer is installed, it retains its characteristic as a storm sewer and the work characteristics associated with its installation do not depend on whether it is on private property or under a road or road allowance.

31. In this case, the end use of the work in dispute is a sewer, albeit one that is used to carry rain water away from an industrial building. The work was performed by a sewer and watermain contractor in a manner that did not differ from the manner in which it and other sewer and water-main contractors install sewers on private property, under roads and in subdivisions. Its installation on private property did not affect the nature or quality of the work. The characteristics of that work, while similar to some characteristics of excavation work in the industrial, commercial and institutional sector, is identical to all other work that is clearly part of the sewers and watermains sector. We therefore conclude that the work in dispute was

work which came within the sewers and watermains sector of the construction industry.

79. The Labourers submit that the *Steen* decision, *supra*, sets out a test for determining when all of the work on a single construction project should be treated as falling into a single sector and when work on a single construction project might be found to fall within more than one sector. The test provides that, where the work on the construction project is closely integrated, all of the work falls in the same sector. Where the work is: (1) distinct; (2) the responsibility for it is clearly severable; and (3) the work patently falls into one of the enumerated sectors of the construction industry, it may fall in a different sector.

80. The Labourers submit, like in *Steen, supra*, where a “sewer is a sewer is a sewer” in this case a “sidewalk is a sidewalk is a sidewalk”, whether it is being poured within school property lines or not. As such, it submits that sidewalks patently fall under the Road Builders (TARBA Agreement). It submits that *Steen, supra*, also stands for the proposition that all work on a construction project need not necessarily come within the same sector of the construction industry. It asserts the sidewalk work, in this application, is a distinct piece of work separate from the school project as a whole. It is distinct, in that, the sidewalk work was not part of the original contract and is clearly an add on as evidenced by Percon’s Change Order. It is also distinct in the sense that Percon could have given the work to any other qualified subcontractor as the responsibility of the sidewalk work was clearly severable from the project. As such, it submits the bargaining rights in issue in this application involve the TARBA Agreement and hence are the non-ICI all other sectors rights in Board Area 18 and not the ICI bargaining rights.

81. Extreme Concrete submits that Haid testified that his company does not work in the roads sector but in the ICI sector. It submits the *viva voce* evidence of Haid clearly indicates the pouring of concrete took place at two locations on March 18, 2016. One location was the municipal sidewalks, the other location was the concrete slabs/sidewalks that abutted the school. It submits the amount of concrete delivered that day was sufficient to pour both locations. Likewise, the Estimate, Change Order and invoice clearly establish concrete was poured on March 18, 2016. Even the union’s own witness Primerano concedes that the municipal sidewalks in question looked freshly poured. Moreover, the Labourers had already conceded, in its status submissions, that bargaining work was done that day. Therefore, the

only dispute is what is the appropriate bargaining unit pertaining to the work performed.

82. The employer submits that the audio recordings involving the conversations between Primerano, a custodian, the Vice-Principal and Principal, do not contradict Haid's testimony that concrete was poured in two locations. It submits the audio recordings are hearsay in nature and, in any event, and it is clear that the school personnel were not 100% sure of what concrete work took place on March 18, 2016. The Principal and Vice-Principal did not believe any concrete was poured. It submits they are clearly mistaken as the concrete packing slip and the union's own investigation establish that municipal sidewalks had, in fact, been poured on March 18, 2016.

83. It further submits that Primerano's evidence should not be preferred to that of Haid. Primerano acknowledged that a big company like Percon could very well have the ability to order less than 3 cubic metres of concrete from Lafarge. If only five municipal sidewalks, each 5' x 5' and 4" deep in dimensions were to be poured why would Percon order and pay for 3 cubic metres when a much smaller delivery of concrete would be sufficient for the municipal sidewalks and the accompanying cost to Percon would be less. It submits that the amount of concrete ordered by Percon is consistent with two locations being poured.

84. Further, it submits Primerano only did a cursory investigation. He only took three pictures on Tuesday, March 22, 2016, which was a rainy day and none of the photos involved the location where Haid testified the sidewalks which abutted the school were poured. Primerano did not follow up with the head custodian, Scott, nor did he follow up with the Project Manager for the School Board, Craig Elliott, as suggested by the Principal and Vice-Principal; nor did he talk with anyone from Percon.

85. Extreme Concrete submits that the concrete work that took place should be found by the Board to be work in the ICI sector. It submits that the work does not patently fall into the roads sector. The Board heard no evidence that sidewalks poured or repaired as part of a larger ICI project are treated as falling within the roads sector. It submits the Board has found in a number of prior cases that the construction of exterior sidewalks were part of a larger ICI project.

86. The intervenor takes the position that the work is not distinct from the overall school project. It is clear the end use of the project (i.e. the school), is in the ICI sector. It submits the sidewalk work took place at the school project and was an add on to Extreme Concrete's contract so that Percon could be found to be in substantial completion and thereby receive payment. It submits it was exterior concrete work that was done in conjunction with an ICI project and, therefore, the sidewalks should also fall within the ICI sector.

87. In its legal argument the employer cited the following cases as being relevant to the question as to how to characterize the work as it pertains to sector: *Avery Construction Ltd.*, [2012] O.L.R.B. Rep. 1; *UCC Group Ltd.*, [2013] O.L.R.B. Rep. 736; *TC Contracting Inc.*, [2015] O.L.R.D. No. 2786 (QL); *Asco Construction Ltd.*, [2015] O.L.R.D. No. 333 (QL); and *Ellis-Don Ltd.*, [1993] O.L.R.B. Rep. 1130.

88. In the *UCC Group Ltd.* decision, *supra*, the Board dealt with a sector dispute between the Labourers and the Carpenters involving two projects: a skateboard park and; sidewalk/landscaped area on a University Campus. The Board found the concrete work in both projects fell within the ICI sector and not the roads sector. As it concerns the sidewalks at the campus project, the Labourers argued that the landscaping work performed by UCC was outside of the new building being constructed by the University and was independent of the work involved in constructing the new building. The subcontract for the landscaping included sidewalks and curbs that abutted a roadway and a parking lot and were designed for foot traffic. The Labourers argued that as the majority of the work performed by UCC was outside of the building and involved the construction of sidewalks, curbs and planters, the end use of the work performed was a road.

89. The Board found that the work performed by UCC was closely integrated with the larger construction project. The work in issue was part of the same work package as the construction of the University building. The work was performed at the same time the University Building was being constructed and was still under construction. The work was performed partially within the building footprint and the work on the exterior of the University building abutted the new building.

90. The Board in the *UCC* decision, *supra*, was also not persuaded that the work patently fell within the roads sector. The Board in that case did not receive any evidence to the effect that sidewalks and

curbs, constructed as part of a larger ICI project, are treated as falling within the roads sector. As such, the Board did not consider it appropriate to determine the end-use of the work based solely on the work package performed by UCC but rather the end-use should be based on the entire construction project which was institutional. Bargaining patterns were insignificant to the Board's determination and work characteristics of the entire project were found to be relevant and were consistent with those employed on an ICI project.

91. In *Avery Construction Limited, supra*, the Board dealt with another sector determination involving work at a municipal landfill site. The Board in this case looked at three basic criteria: work characteristics, bargaining patterns and end use. The Board concluded that it would not subdivide the work in dispute. All the work took place at a landfill site under one contract. It found that when assessing the work it was appropriate to look at how the entirety of the work process was carried out on the project, rather than to focus on the detailed elements of each work function in dispute. When viewed as a whole, the work characteristics and end use favoured a finding that the work in dispute fell within the ICI sector.

92. The intervenor submits, like in the *Avery Construction Limited, supra*, there is no reason in this application to subdivide the sidewalk work from the rest of the school project. Further, the Board has commented that when dealing with exterior concrete landscaping it is unwise to fragment construction projects by carving out the "outside construction" from the project as a whole (see *T C Contracting Inc., supra*, at paragraph 13).

93. Extreme Concrete submits that when assessing the end-use, the Board must examine the entirety of the project and put it into context in a practical way (see *Asco Construction Ltd., supra* at paragraph 42). In this regard, it submits the sidewalk work was work done in conjunction with the erection of an ICI building (i.e. the school) and the sidewalk work came under the overall responsibility of the general contractor (Percon), who was responsible for the school project. It submits the exterior sidewalk work characteristics favour a finding it is an ICI project as there is little to no evidence of bargaining patterns.

94. Extreme Concrete submits that the sidewalk work arose on an ICI project and had to be done over March break, when no students were at the school. The timing issue is an institutional issue that

points to the end use of the work being ICI in nature and not in the roads sector. It submits the case law it has cited above demonstrates that the Board has on numerous occasions, found exterior concrete work done in conjunction with an ICI project to fall within the ICI sector.

95. The applicant relied on the arguments made by the intervenor and submitted that the quantity of concrete delivered works for the two locations where sidewalks were poured on March 18, 2016.

96. In reply legal argument the Labourers argue the cases relied on by the intervenor are distinguishable from the facts at hand, in that, the exterior concrete work in those cases were integrated with and done as part of a larger ICI project. The Labourers submit that the Board should follow the approach as set out in the *Steen Contractors Limited* case, *supra*, and find the sidewalk work in this case was a distinct and severable piece of work and that repair of sidewalks patently falls within the roads sector.

97. The Labourers also submit that the evidence of Primerano should be preferred to Haid's evidence as to the number of locations where work was performed on March 18, 2016. It also submits the third party documentary evidence of Percon's Change Order only speaks to municipal sidewalks and does not speak to other types of sidewalks, such as those abutting the school property. The Concrete Packing slip does not say how many pours actually occurred, however, the time it identified for the pours and the minimum amount of concrete that was delivered supports a finding that only one location was poured, namely, the five 5' x 5' municipal sidewalks. It notes that neither the intervenor nor the applicant called anyone from Percon or Lafarge as witnesses to clarify the documents and the discrepancy as to the work performed. As such, the Board should draw an adverse inference.

ii) The Decision

98. In determining the appropriate bargaining unit question the Board must first determine what was the work performed by the employees on the application filing date. Was the work the pouring of sidewalk slabs at two locations, as testified to by Haid or was the work the pouring of only municipal sidewalk slabs?

99. As it concerns the municipal sidewalk work it is clear from the evidence that such work took place. The Labourers had already conceded, in its status submissions, that such work was performed. What is less clear is whether five – 5' x 5', 4" deep municipal sidewalk slabs were poured that day, as stated by Primerano and as shown in his photograph; or were 2 – 4' x 5' slabs of sidewalk poured, as originally testified to by Haid; or was only 1 – 5' x 5' slab poured, as identified by Haid in his photo which was taken approximately two months after his first day on the witness stand.

100. The Percon Change Order, entered as an exhibit, states "Complete Municipal Sidewalks". The Percon Change Order does not expressly identify how many municipal sidewalk slabs needed to be completed, however, by using the plural "sidewalks" the Board is of the view it was more than one slab.

101. The Board is of the view that Primerano's evidence and his photograph should be preferred to that of Haid's evidence with respect to the issue as to how many municipal sidewalk slabs were poured. Primerano's photograph was taken 4 days after the application date and he was not seriously challenged in cross-examination that his photograph did not reflect the municipal sidewalk work done by Extreme Concrete. Primerano's photo shows five sidewalk slabs in a row that are 5' x 5'. Haid initially testified that there were two municipal sidewalk slabs, 4' x 5' that were poured. Haid's subsequent photograph, taken two months after the application, only shows one sidewalk slab, 5' x 5'. The Board is of the view that this subsequent photograph taken by Haid is not the municipal sidewalk work in dispute. To start, it is only a photo of one sidewalk slab, not two or five in a row. In addition, Haid's photograph shows a single sidewalk slab that is somewhat different in colour and aggregate composition when compared to the sidewalk slabs that adjoin it.

102. Given that Haid's photo does not reflect Haid's earlier testimony of two municipal sidewalk slabs and given the fact that Primerano's photographic evidence was taken much sooner after the application date and was not seriously challenged by the other parties, the Board finds that, it is more likely than not, that 5 slabs of municipal sidewalk, 5' x 5' and 4" thick were poured by the employees of Extreme Concrete on March 18, 2016.

103. As it concerns the alleged second location, which Haid testified involved the pouring of concrete for exterior cross slab/ sidewalks

abutting the school that were 11' wide and 20.5' in length, the Board does not believe such work took place on March 18, 2016, for the reasons that follow.

104. The Board notes that the union never asked Konarski any questions concerning the work he performed when the union called him as its first witness in this matter. In all likelihood, this was due to the fact that the issue of two locations did not arise/crystalize until Haid was on the stand. Konarski, however, did not call any additional evidence to clarify the dispute concerning the two locations when he had the opportunity to do so.

105. The Board also notes that neither the applicant nor the intervenor expressly identified the alleged cross slab/sidewalk work which abutted the school in their respective pleadings or status submissions. The applicant, in his application identified the work as "Place & Finish Exterior Sidewalks". The intervenor, in its intervention, described the work as "exterior sidewalk installation ... at the worksite".

106. In his status submissions the applicant does not further describe the work performed at the School on March 18, 2016. Rather, his status submissions only reference that the "slip from the redi mix plant that was previously submitted, the letter from Larry Hewgill (the general superintendent of Percon Const.) that was submitted with his response would verify the details of any questions that anyone should have regarding the date, location and work performed by Extreme Concrete on March 18, 2016". The letter from Larry Hewgill was never entered into evidence nor was Larry Hewgill called as a witness nor did any party ask any questions concerning this particular letter.

107. The intervenor, in its initial status submissions of April 14, 2016, stated the following:

14. On Friday, March 18, 2016, the Employees performed an exterior sidewalk installation at the worksite located at 105 Colborne Street, in Bradford, Ontario (the "Project"). This was the sole job site for Extreme Concrete on March 18, 2016 date and no other employees of Extreme Concrete were working.

15. The general contractor for the Project was Percon Construction Inc. ("Percon").

16. The Project consisted of the addition and renovation of the Ste. Marie of the Incarnation Catholic School with Extreme Concrete retained by Percon to complete the concrete finishes, including the Municipal sidewalks...

17. In or around March, 2016, Percon requested that Extreme Concrete complete the municipal sidewalk portion of the Project. Percon specifically requested that the work be completed over March break as no children would be present. Percon was not able to complete the Project to the satisfaction of the school board until the exterior sidewalk was installed...

18. The Employees completed the exterior sidewalk installation on Friday, March 18, 2016. The work completed by the Employees in an exterior sidewalk installation would involve:

108. If, as Haid alleges, both the municipal sidewalk slabs and a number of the cross slab/sidewalks that abut the school had been damaged and needed to be repaired, one would have thought both pieces of work would have been clearly identified in the original pleadings and status submissions. This, however, was not the case and it raises the Board's suspicions as to the legitimacy of the sidewalk work that allegedly abutted the School property. Likewise, the Board is of the view that if, in fact, there were two different pieces of concrete work the Percon Change Order would have clearly identified both pieces of work and would have sought estimates for both pieces of work. The fact that the Percon Change Order only identifies the work as "Complete Municipal Sidewalks" and the lack of any reference to the cross slab/sidewalk work which abuts the school in the original pleadings and status submissions leads the Board to find that, in all probability, only the municipal sidewalk work was performed on March 18, 2016.

109. The Board also finds it troubling that when the second location of work (i.e. the cross slabs abutting the school) was clearly put in dispute by Haid's testimony, both the intervenor and the applicant chose not to call any further evidence. No witness from Percon, such as Massimo Perricone, the Percon individual identified on the Change Order or Larry Hewgill, the General Superintendent, referenced in the applicant's status submissions nor the Lafarge ready-mix driver who delivered the concrete to the site were called as witnesses to corroborate Haid's evidence. The Labourers ask that the Board draw an adverse inference that by the applicant and/or intervenor failing to

call such individuals an inference can be drawn that they would not have supported Haid's evidence of a second location. The Board agrees that given the issue of the second location was clearly in dispute before the intervenor or the applicant closed their cases it is appropriate to draw such an adverse inference.

110. The Board also finds that based on Haid's own evidence, namely, that 100 square feet equates to approximately 0.9 cubic metres of concrete there would not have been enough concrete to pour both pieces of work. The municipal sidewalk slabs, assuming a 4 inch thickness equates to 125 square feet (5 sidewalk slabs of 5' x 5'). The cross slab/sidewalks abutting the school, according to Haid, were approximately 11' wide by 20.5' long, which equates to 225.5 square feet. In total the square footage for both jobs is approximately 350.5 square feet, which according to Haid's math (i.e. 350.5 square feet x 0.9 = 3.15 cubic metres). This exceeds the 3.0 cubic metres of concrete which was delivered that day.

111. Further, Haid testified that it would have taken approximately 15 minutes to pour the municipal sidewalk slabs as well as another 15 minutes to pour the exterior concrete slab/sidewalks that abutted the school. The concrete packing slip, a document from an independent third party, clearly shows that the pour commenced at 8:30 a.m. and that 20 minutes later the ready-mix truck had been washed and was proceeding back to the plant. Given the times identified on the concrete packing slip; Haid's own testimony on the time it would take to pour the concrete; and Primerano's evidence as to the time it would take to pour both locations and his evidence that three cubic metres would be insufficient concrete to do both pours, these facts further support the Board's finding that only the concrete work involving the municipal sidewalk slabs was performed on the application date.

112. Given the above and the Board's finding that only the municipal sidewalk work took place on the application date, the Board can now deal with the parties' arguments as to whether such work is ICI work or is work in the non-ICI sectors in Board Area 18 (i.e. work falling under the TARBA Agreement/Roads Sector).

113. While the Board disagrees with the Labourers' premise that "a sidewalk is a sidewalk is a sidewalk", the Board does agree with the legal submissions of the Labourers that the Board's decision in *Steen Contractors Limited, supra*, sets out the appropriate test for helping to ascertain the sector of the municipal sidewalk work in issue. The

Board is of the view that none of the cases cited and relied on by the intervenor, expressly deal with repairs to municipal sidewalk slabs, after the general contractor has handed over the keys to an ICI project. Nor does the Board view the present facts as an attempt by the Labourers to carve out the "outside construction" from the project as a whole.

114. *Steen Contractors Limited, supra*, provides that where the work on a project is closely integrated all of that work should fall in the same sector. Where, however, the work is (1) distinct; (2) the responsibility for it is clearly severable; and (3) the work patently falls into one of the enumerated sectors of the construction industry, the end use of such work may fall in a different sector from that of the overall project.

115. In the case at hand, the Board is of the view that repairs to municipal sidewalk slabs is a distinct piece of work from the renovation and addition to the existing school in Bradford. I find that the municipal sidewalk slabs were not part of Percon's original contract nor the original subcontract to Extreme Concrete. The evidence discloses the municipal sidewalk work was in the nature of an add-on to Extreme Concrete's contract. The municipal sidewalk slabs are not connected to the School. The municipal sidewalk slabs in issue abut a roadway and are designed for foot traffic.

116. The evidence discloses that Extreme Concrete had finished the work it was originally contracted to do as it had not been on site for 4 – 5 weeks and the general contractor, Percon, had handed over the keys at least 2 – 3 weeks prior to the municipal sidewalk work. I find, on the balance of probabilities, the municipal sidewalk work was the result of damage caused to the sidewalk and that the School Board was requiring the general contractor fix the sidewalk slabs before the School Board would pay Percon. The Board agrees with the Labourers that the municipal sidewalk work is distinct and severable, in that, Percon could have given the work to any other qualified subcontractor. Percon was not contractually obligated to give it to Extreme Concrete. Further, the Board is of the view that the responsibility of the sidewalk work was clearly a distinct package of work from the ICI project. The municipal sidewalk work was not done in conjunction with the construction at the school and was not integrated with the construction at the school as a whole.

117. In the present circumstances, while there is little direct evidence as to bargaining patterns or work characteristics, given the Board's experience in the construction industry, it is aware that stand alone repair to municipal sidewalk slabs, as opposed to exterior sidewalks that are closely integrated with a project, like in the *UCC Group Ltd.*, decision, *supra*, is work that typically falls within the roads sector. Therefore, the Board finds that the type of municipal sidewalk work performed in this case is work that patently falls under the roads sector and, hence, the bargaining rights in issue are the Board Area 18, non-ICI sector rights.

118. Having concluded that the application should not be dismissed pursuant to 63(16) of the Act and that the bargaining rights at issue are the non-ICI bargaining rights in Board Area 18, the Board directs the Manager of Mediation, in consultation with the parties, to set a date and time for the counting of the ballots of the three individuals who cast ballots in this matter.

119. The intervenor is directed to post a copy or copies of this decision in a location or locations where it will come to the attention of the individuals in the bargaining unit. These copies must remain posted for a period of 45 days from the date of this decision.

"John D. Lewis"
for the Board